

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 2019 OF 2011

Md. Joynal Abedin alias Joynal Haque and
another

.... Defendant-Appellants - petitioners

-Versus-

Md. Kafil Uddin being dead his legal heirs Jarina
and others

....Plaintiff-Respondents - Opposite Parties

Mr. Mozahar Hossain, Advocates

..... For the Petitioner

Mr. Abul Kalam Azad, Advocate

..... For the Opposite Party Nos.1-14

Judgment on: 20.11.2017.

At the instance of the present defendant-appellant- petitioners, Md. Joynal Abedin alias Joynal Haque and another, this Rule has been issued calling upon the opposite party Nos. 1-14 to show cause as to why the impugned judgment and decree dated 27.10.2008, passed by the learned District Judge, Panchagar in Title Appeal No. 69 of 2007 affirming the judgment and decree dated 29.03.2007 and 03.04.2007 respectively passed by learned Assistant Judge, Atowari, Panchagar in Title Suit No. 14 of 2003 should not be set aside.

The relevant facts for disposal of this Rule, *inter-alia*, are that, the present opposite parties as the plaintiffs filed the Title Suit No. 14 of 2003 praying for partition of land measuring $2.95\frac{1}{4}$ acres out of total land

measuring 5.50 acres. The case in the plaint is that the suit land was originally own by Md. Meru Mohammad and after his death his four sons and two daughters were in possession jointly. After getting entitlement of land as the co-owners the defendants transferred the suit land to the present plaintiff opposite parties by executing deeds dated 27.11.1977, 04.08.1979, 03.06.2006, 27.08.2003, 27.02.1997, 19.03.1980 and 19.04.1982, accordingly, the plaintiff opposite parties became owners of the suit land out of total land in the same joth. On request for partition, the present defendant petitioners refused.

The suit was contested by some of the defendants by filing a written statement denying the statements made in the plaint. It is contended that the defendant Nos. 2, 3, 4-6 and 11 were owners of the suit land by way of inheritance. The defendant Nos. 16-18, 20 acquired lands by way of purchase, accordingly, they became owners of total land measuring 1.98 acre. The defendant Nos. 30-40 transferred land to the defendant No. 9 by a sale deed.

After hearing the parties the learned Assistant Judge, Atowari, Panchagar, decreed the suit by his judgment and preliminary decree dated 29.03.2007. Being aggrieved the present petitioners as the appellants preferred the Title Appeal No. 69 of 2007 and after hearing the parties the court dismissed the suit by the judgment dated 27.10.2008. This revisional application has been filed against the said judgment and decree and the Rule was issued thereupon.

Mr. Mozahar Hossain, the learned Advocate appearing for the petitioners submits that both the courts below failed to appreciate that the plaintiff failed to prove their right, title and possession in the suit land and thereby the learned court below erroneously found that the plaintiff-opposite parties have title and possession over the suit land without having any material proof of the same and as such the learned courts below committed error of law resulting in an error in the decision occasioning failure of justice in not dismissing the suit.

The Rule has been opposed by the present opposite parties.

Mr. Abul Kalam Azad, the learned Advocate appearing for the opposite parties submits that the learned trial court after considering the documentary and oral evidence allocated saham for the present opposite parties measuring $2.95\frac{1}{4}$ acres of land, which has been affirmed by the learned appellate court and no error of law has been committed by the learned appellate court as such no interference from this court is called for.

The learned Advocate further submits that the present petitioners failed to claim any saham on the basis of any documentary evidence, therefore, no saham was allocated in their favour, as such, the Rule is liable to be discharged.

Considering the above submissions made by the learned Advocates and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with the annexure therein and also considering the materials in the lower court record, it appears that the present opposite parties as the plaintiffs filed suit for partition claiming

2.95 $\frac{1}{4}$ acres of land out of total 5.50 acres of land in the same joth which was not partitioned among the parties in order to get their respective sahams. The present plaintiff opposite parties stated that the suit land was originally own by Meru Mohammad and he died leaving behind four sons Kafiluddin, Asiruddin, Unus Ali and Siraj Miah and two daughters Jobeda and Fohima. The present opposite parties purchased the land from heirs of Meru Mohammad through different sale deeds from the present defendant petitioners which have been exhibited in the suit.

On the other hand, the present petitioners filed some documents in support of their case without claiming any saham. The settle principle of law is that in a partition suit the plaintiffs and the defendants have equal right to claim their saham or share on the basis of specific valid documents for entitlement upon any land. The defendants failed to claim any saham in the courts below, eventhough, they have claimed possession upon the land but all of the defendant petitioners failed to substantiate their claim by any documentary or oral evidence. Therefore, the learned trial court committed no error of law by decreeing the suit in favour of the present opposite parties and also the learned appellate court below committed no error of law by finding concurrently and dismissing the appeal by finding in favour of the present plaintiff opposite parties. I am satisfied that no error of law has been committed by the appellate court by passing the impugned judgment and decree in the preliminary form.

I am therefore not inclined to interfere into the judgment and decree passed by the appellate court below.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The interim order of direction to maintain status-quo in respect of possession and position of the suit property is hereby recalled and vacated.

The office is directed to communicate this judgment and order to the concern Court immediately and also directed to send down the lower court records at once.